

**Court No. - 40**

**Case :-** WRIT - C No. - 52115 of 2008

**Petitioner :-** M/S Rana Concast Ltd.

**Respondent :-** M.D. P.V.V.N.L. And Another

**Petitioner Counsel :-** B.C. Rai,Dinesh Rai

**Respondent Counsel :-** H.P. Dube,S.C.

**Hon'ble Sheo Kumar Singh,J.**

**Hon'ble Arvind Kumar Tripathi (II),J.**

This matter is of the year 2008. The matter was assigned to this Bench on 13.10.2008. The roster of this Bench has been changed. It is not proper for this Bench to hear the matter.

Office is directed to list this matter before regular Bench immediately after two weeks. This writ petition will not be treated as tied up/ part heard to this Bench.

**Order Date :-** 20.4.2012

v.k.updh.

**Court No. - 3**

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**Petitioner :-** M/S Rana Concast Ltd.

**Respondent :-** M.D. P.V.V.N.L. And Another

**Counsel for Petitioner :-** B.C. Rai, Dinesh Rai

**Counsel for Respondent :-** H.P. Dube, N. Misra, S.C.

**Hon'ble Pritinker Diwaker, J.**

**Hon'ble Saral Srivastava, J.**

Heard Sri Dinesh Rai, learned counsel for the petitioner.

None for the respondents.

This petition relates to the payment of additional security for supply of electricity with the warning that if the payment of security is not made within the stipulated period, appropriate action would be taken in accordance with law. The petitioner has also challenged the provisions contained in clause (1) of Para 4.20 of the Electricity Supply Code, 2005, insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003.

Learned counsel for the petitioner fairly submits that number of identical matters have already been dismissed by this Court vide judgment dated 21.3.2017 passed in lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others). He submits that said judgment is already subject matter before the Apex Court and as such in the present petition also similar order can be passed.

Considering the fair submission of learned counsel for the petitioner, the present petition is also dismissed in terms of order dated 21.3.2017 passed by this Court in a bunch of cases lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others).

The writ petition is, accordingly, **dismissed**.

**Order Date :-** 15.11.2018

AKK/Ajit